URGENT SOS - PLEASE HELP ME REACH SAFETY

THE WITNESS REMAINS — THE COSMIC RECKONING

A HUMANITARIAN APPEAL, URGENT CRIMINAL INVESTIGATION REQUEST, SAFEGUARDING COMPLAINT, PERSONAL TESTIMONY AND PUBLIC EVIDENCE RECORD

DATE: 1 NOVEMBER 2026

DR RICHARD WILLIAM McLEAN PUBLICLY KNOWN AS DR BARRAN DODGER

Artist | Researcher | Author | Disability Advocate | Whistleblower

I AM NOT SUICIDAL. I WANT TO LIVE. I AM NOT ASKING FOR A HOSPITAL. I AM ASKING FOR SAFETY, JUSTICE AND ACCOUNTABILITY.

==========

1. WHY I AM ISSUING THIS URGENT SOS

I am publishing this appeal because I have reached a point where I cannot reasonably continue trying to resolve everything through the same arrangements and organisations that I believe have contributed to my circumstances.

I need immediate practical assistance, independent safeguarding, protection, food, financial access, appropriate disability support and a safe pathway towards rebuilding my life.

I am a disabled Australian man who has spent years attempting to obtain accountability for events that I believe involve serious institutional failures, mistreatment, discrimination, administrative exclusion and the abandonment of safeguarding responsibilities.

I have documented my experiences extensively. I have preserved correspondence, official records, complaints, reports, personal testimony, legal documents and other material in a publicly accessible archive.

I am not asking the public to accept every allegation without examination.

I am asking people to read the evidence, understand the circumstances, recognise the

seriousness of the reported risks and help me obtain the assistance I urgently need.

I should not have to become a forensic archivist of my own suffering to receive food, safety, dignity and basic human assistance.

My current circumstances involve several overlapping problems requiring urgent attention.

I report that:

- **I have experienced serious and prolonged difficulties obtaining appropriate disability support.**
- **I have experienced financial restrictions affecting my practical independence and access to ordinary banking facilities.**
- **I have struggled to obtain reliable transportation and community access.**
- **I have experienced difficulties obtaining food and meeting basic daily living needs.**
- **I have experienced significant barriers to obtaining appropriate accommodation and stable living arrangements.**
- **I have repeatedly sought assistance from government agencies, oversight bodies and service providers.**
- **I have experienced death threats and raised concerns about my personal safety.**
- **I allege that my NDIS provider has refused to report those threats or appropriately escalate my concerns.**
- **I have felt trapped in arrangements from which I have struggled to obtain meaningful assistance or independence.**

The death threats are particularly serious.

I expect a disability provider receiving a credible report of threats to take the matter seriously, document what has been reported, assess immediate risks and explain what action it will take.

I am requesting an independent examination of what was reported, when it was reported, who received it, what action was taken and whether applicable safeguarding or reporting obligations were breached.

A person's safety should never become a matter of administrative convenience, contractual disagreement or organisational self-protection.

==========

2. AN IMPORTANT CLARIFICATION TO NSW POLICE

I DO NOT NEED ANOTHER WELFARE CHECK. I NEED A CRIMINAL INVESTIGATION.

I want to make my position absolutely clear to NSW Police, government authorities, disability organisations and the public.

I AM NOT ASKING FOR ANOTHER HOSPITAL ADMISSION.

I AM NOT ASKING FOR AN UNNECESSARY PSYCHIATRIC ASSESSMENT.

I AM NOT ASKING FOR ANOTHER WELFARE CHECK TO REPLACE AN INVESTIGATION.

I am asking for an appropriate criminal investigation into the conduct I have reported and the evidence I have been attempting to bring to the attention of authorities.

I do not consider a welfare check an adequate response to allegations of criminal conduct.

I do not want legitimate complaints about threats, suspected wrongdoing, financial restrictions, disability-service conduct or possible criminal collaboration automatically redirected into a psychiatric framework.

I am not sick because I am complaining.

I am not sick because I have preserved evidence.

I am not sick because I am demanding accountability.

I am not sick because I refuse to accept treatment that I believe is unjust.

I AM NOT SICK. THE CORRUPTION I AM ALLEGING IS WHAT I FIND SICKENING.

I am particularly demanding that NSW Police independently investigate the conduct of Able Point's CEO and any other individuals whose actions may be implicated by the evidence.

I allege that there may have been coordinated conduct involving individuals in positions of responsibility.

I want investigators to determine whether the conduct amounts to criminal conspiracy, an agreement to commit an offence, or another offence under applicable NSW or Commonwealth law.

I want investigators to examine:

- **Whether individuals knowingly participated in unlawful conduct.**
- **Whether there was coordination between people whose actions affected my safety, financial circumstances, disability supports or ability to obtain assistance.**
- **Whether threats against me were properly reported, documented and investigated.**
- **Whether evidence was concealed, altered, destroyed or improperly withheld.**
- **Whether any person knowingly assisted, encouraged or facilitated criminal conduct.**
- **Whether there was misuse of authority, dishonesty, intimidation or retaliation connected with my complaints.**
- **Whether the CEO or any other individual knew about relevant incidents and failed to take legally required action.**

I want the original records, communications, incident reports, service-provider records and other available evidence preserved and examined.

If the evidence establishes lawful grounds for arrest, I expect police to exercise their powers appropriately.

I am not demanding that somebody be arrested merely because I have accused them. I am demanding that credible allegations be properly investigated rather than dismissed or diverted without examination.

No executive position, corporate title or organisational reputation should place anybody beyond lawful investigation.

THE PSYCHIATRIC DIVERSION MUST NOT REPLACE INVESTIGATION

There is a fundamental difference between a person requiring medical assistance and a person reporting suspected criminal conduct.

Those two matters must not be confused.

My psychiatric history does not invalidate my legal rights.

My disability does not invalidate my testimony.

My complaints do not automatically become symptoms.

My requests for police intervention should be assessed on their actual content and supporting evidence.

I have a right to report suspected criminal conduct and have that report assessed appropriately.

I have a right to seek protection from threats.

I have a right to have evidence preserved.

I have a right to procedural fairness.

I have a right to be treated as a human being capable of expressing concerns, making decisions and participating in investigations.

If an immediate medical emergency genuinely arises, it should be addressed appropriately. But that must not become a substitute for investigating criminal allegations.

MY MESSAGE TO ABLE POINT AND ITS MANAGEMENT

I want the relevant management and corporate records independently examined.

I want answers about what was known, when it was known, what was reported, what decisions were made and why.

I want the organisation's response to my reported death threats investigated.

I want the handling of my safeguarding complaints examined.

I want the relevant communications and incident records preserved.

I want an independent assessment of whether any individual failed their legal, professional or statutory responsibilities.

I WILL NOT ACCEPT A WELFARE CHECK AS A SUBSTITUTE FOR A CRIMINAL INVESTIGATION.

I am asking for police accountability, not psychiatric diversion.

I am asking for evidence to be examined, not for my complaints to be dismissed.

I am asking for justice, not another administrative exercise.

==========

3. THE ENTRAPMENT — A BETRAYAL OF THE PURPOSE OF DISABILITY SUPPORT

One of the most disturbing aspects of my experience is what I describe as entrapment.

I entered disability support arrangements because I needed assistance, stability, safety and the opportunity to live a more independent life.

I did not enter those arrangements to surrender my humanity, lose meaningful control over my circumstances or become dependent on organisations that I cannot effectively challenge.

I believe the cumulative effect of financial restrictions, accommodation difficulties, unreliable assistance, barriers to transportation, communication difficulties and unresolved complaints has left me feeling trapped.

IT IS DISGUSTING WHEN A SYSTEM INTENDED TO PROVIDE SUPPORT BECOMES, IN THE EXPERIENCE OF THE PERSON DEPENDING UPON IT, A SOURCE OF CONFINEMENT, DEPENDENCY AND POWERLESSNESS.

I want this allegation examined properly.

I want the actual decisions, communications, financial arrangements, service agreements, incident reports and case notes examined.

I want to know whether the restrictions imposed were lawful, necessary and proportionate.

I want to know whether the people responsible understood the consequences of their decisions.

I want to know why, despite repeatedly asking for help, I have continued to experience circumstances that I believe undermine the independence the NDIS is supposed to promote.

I am not claiming that every restriction automatically constitutes unlawful entrapment. I am demanding that the cumulative circumstances and the legal authority for each

restriction be independently investigated.

==========

4. THE DOCUMENTARY RECORD — MY TESTIMONY IS PRESERVED

My archive is intended to preserve the chronology, correspondence, official documents, complaints, personal testimony and other material that I believe should be independently examined.

It is not simply a collection of accusations. It is an attempt to establish a record that can be checked, compared, challenged and investigated.

My central principle is:

PRESERVATION FIRST. EXAMINATION SECOND. CONCLUSION LAST.

The archive covers:

- **Disability services and alleged failures of safeguarding.**
- **NDIS decisions, support arrangements and participant rights.**
- **Mental health treatment and psychiatric history.**
- **Police and government interactions.**
- **Financial administration and restrictions on autonomy.**
- **Accommodation, homelessness and personal safety.**
- **Whistleblower complaints and alleged failures of institutional accountability.**
- **Human rights and Australia's international obligations.**
- **Personal testimony, published books, artwork and spiritual reflections.**
- **Digital preservation, documentary registers and blockchain timestamping.**

I have attempted to distinguish official records, documented correspondence, personal testimony, allegations and conclusions requiring independent investigation.

==========

5. EXECUTIVE SUMMARY — THE WITNESS REMAINS: THE COSMIC RECKONING

ORIGINAL WEBSITE:

https://barran-dodger-krynos-timing-of-god.grok.me/

The website presents my testimony through a spiritual, philosophical and prophetic

framework.

Its central themes include:

THE TIMING OF GOD

An exploration of time, human accountability, faith, suffering, survival and the belief that truth eventually comes into the light.

THE WITNESS REMAINS

The idea that testimony and documentary records should survive adversity, institutional disagreement and attempts to dismiss a person's experiences.

THE COSMIC RECKONING

A spiritual and moral examination of human conduct, conscience, responsibility, betrayal, forgiveness and accountability.

THE PRESERVATION OF TRUTH

The connection between personal testimony and documentary evidence, guided by the principle that evidence should be preserved before conclusions are reached.

FAITH, SURVIVAL AND RESTORATION

A determination to survive, retain dignity, pursue truth and rebuild a life rather than surrender to despair.

TECHNOLOGY, MEMORY AND THE OPEN RECORD

The use of digital archives, AI-assisted documentation and blockchain timestamping to preserve records beyond the limitations of individual institutions.

The website's spiritual interpretations represent my personal faith and worldview. They are distinct from independently established legal or factual findings.

THE WIDER ARCHIVE AND PUBLISHED WORKS

A. THE BARRAN DODGER DOCUMENTARY ARCHIVE

https://github.com/wezzo72/Barrandodger

Historical records, correspondence, complaints, official documents and personal testimony.

B. OFFICIAL GOVERNMENT DOCUMENTS REGISTER

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

A reference point for examining government records and documentary material.

C. PUBLISHED TESTIMONY AND BOOKS

RECOVERED, NOT CURED

BETRAYED, MURDERED, FORSAKEN

THE MANIFESTO OF THE UNERASED

These works explore lived experience, disability, institutional treatment, survival and faith.

D. ENLIVEN CHAIN AND DIGITAL PRESERVATION

The preservation of documentary material through digital archives, timestamps and blockchain records.

E. SPIRITUAL AND PROPHETIC WRITINGS

Reflections on survival, justice, forgiveness, accountability and Christian faith.

The wider project attempts to preserve a public record of my experiences and make the underlying material available for independent scrutiny.

IMPORTANT TRANSPARENCY STATEMENT:

The supplied Grok website's individual pages could not all be independently retrieved for a complete page-by-page audit. This is therefore a thematic executive summary rather than a claim that every individual webpage has been independently inspected or every allegation verified.

==========

6. WHY THIS IS A HUMAN RIGHTS AND SAFEGUARDING ISSUE

The following legal frameworks are relevant to the circumstances I describe.

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (CTH)

Supports dignity, choice and control, independence and social participation.

NDIS CODE OF CONDUCT

Requires respect for individual rights, safe and competent services, honesty, integrity and appropriate responses to safety concerns.

DISABILITY DISCRIMINATION ACT 1992 (CTH)

Provides protection against disability discrimination in services, accommodation and other areas.

NSW TRUSTEE AND GUARDIAN ACT 2009

Establishes principles concerning financial management, individual interests, wishes, independence and freedom of decision.

NSW MENTAL HEALTH ACT 2007

Provides principles and safeguards concerning mental health care and treatment.

PRIVACY ACT 1988 (CTH)

Provides protections concerning personal information, accuracy, access and disclosure.

AUSTRALIA'S INTERNATIONAL HUMAN RIGHTS COMMITMENTS

Australia has ratified the following particularly relevant conventions:

1. CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES

Relevant articles include:

Article 5 — Equality and non-discrimination.

Article 12 — Equal recognition before the law.

Article 15 — Freedom from torture or cruel, inhuman or degrading treatment.

Article 16 — Freedom from exploitation, violence and abuse.

Article 19 — Living independently and being included in the community.

Article 25 — Health.

Article 28 — Adequate standard of living and social protection.

2. INTERNATIONAL COVENANT ON CIVIL AND POLITICAL RIGHTS

Relevant articles include:

Article 7 — Freedom from torture and cruel, inhuman or degrading treatment.

Article 9 — Liberty and security of person.

Article 17 — Protection against arbitrary or unlawful interference with privacy and family life.

Article 19 — Freedom of expression.

Article 26 — Equality before the law.

3. INTERNATIONAL COVENANT ON ECONOMIC, SOCIAL AND CULTURAL RIGHTS

Relevant articles include:

Article 11 — Adequate standard of living, including food and housing.

Article 12 — Highest attainable standard of physical and mental health.

4. CONVENTION AGAINST TORTURE

Particularly relevant provisions include Articles 2 and 16.

These instruments establish important standards concerning dignity, equality, protection against abuse, autonomy, health, adequate living conditions and freedom from degrading treatment.

Ratification creates international obligations for Australia, although not every treaty provision is automatically directly enforceable in domestic courts.

I am demanding that the treatment I describe be examined against these obligations.

==========

7. THE HUMAN COST — I AM A PERSON, NOT AN ADMINISTRATIVE FILE

Behind every complaint number, support plan, financial decision and psychiatric record is a human being.

I have a history of serious psychiatric illness and disability. I have experienced repeated hospitalisations and prolonged periods of distress.

I have also written books, created art, undertaken academic research, advocated for others and spent years attempting to preserve my experiences.

I want a future.

I want to live somewhere safe.

I want appropriate treatment and dependable support.

I want to access my money, obtain food, travel, maintain relationships and make decisions about my own life within the law.

I want my companion, Crystal, to be safe and properly cared for.

I want to rebuild my relationship with the world rather than spend every waking hour trying to convince institutions that I deserve assistance.

My psychiatric history must never be used as a substitute for examining evidence.

A diagnosis is not a licence to disregard somebody's testimony.

A vulnerable person does not lose their human rights because they need assistance.

Someone who repeatedly complains about mistreatment does not thereby become undeserving of protection.

==========

8. WHAT I AM ASKING THE PUBLIC TO DO

I am appealing to ordinary Australians, disability advocates, human rights organisations, journalists, lawyers, community organisations, philanthropists and anyone who believes that vulnerable people deserve dignity.

I need practical assistance, not simply expressions of sympathy.

IMMEDIATE HUMANITARIAN ASSISTANCE

- **Food and essential groceries.**
- **Assistance with Crystal's food and welfare.**
- **Essential medication and health-care access.**
- **Practical financial assistance.**

SAFETY AND PROTECTION

- **Independent assessment of reported death threats.**
- **Appropriate police investigation.**
- **Independent safeguarding advocacy.**
- **Assistance documenting and escalating incidents.**

SAFE ACCOMMODATION

- **Accessible and stable accommodation.**
- **A suitable arrangement that accommodates Crystal.**
- **Help transitioning away from arrangements that are not meeting my needs.**

INDEPENDENT LEGAL ADVOCACY

- **Review of financial management decisions.**
- **Independent review of NDIS service delivery.**
- **Legal advice concerning discrimination and safeguarding.**
- **Assistance making properly evidenced complaints.**

PUBLIC INTEREST AND MEDIA ATTENTION

- **Journalists willing to examine the archive.**
- **Human rights organisations willing to assess the evidence.**
- **Advocates prepared to help obtain independent scrutiny.**
- **People willing to share this appeal responsibly.**

==========

9. THE INDEPENDENT AUTHORITIES I AM ASKING TO ACT

NSW POLICE

https://www.police.nsw.gov.au/

Requested action:

Assess reported death threats and investigate suspected criminal conduct, including allegations concerning Able Point management.

NDIS QUALITY AND SAFEGUARDS COMMISSION

https://www.ndiscommission.gov.au/

Requested action:

Investigate provider conduct, safeguarding and incident-management responses.

NSW OMBUDSMAN

https://www.ombudsman.nsw.gov.au/

Requested action:

Examine relevant NSW public administration complaints.

OFFICE OF THE AUSTRALIAN INFORMATION COMMISSIONER

https://www.oaic.gov.au/

Requested action:

Examine relevant privacy complaints.

AUSTRALIAN HUMAN RIGHTS COMMISSION

https://humanrights.gov.au/

Requested action:

Consider discrimination and human rights concerns.

LEGAL AID NSW

https://www.legalaid.nsw.gov.au/

Requested action:

Provide or direct me to appropriate legal assistance.

I request written acknowledgment, appropriate investigation reference numbers, preservation of relevant evidence and an explanation of the available review processes.

==========

10. THE LEGAL AND ETHICAL FAILURE — WHY MY TREATMENT IS SICKENING

I find the circumstances described in my testimony sickening.

I find it deeply disturbing that a person can spend so much of their life seeking assistance from institutions established to protect people, yet still reach a point where they report being without food, financial independence, reliable support and meaningful access to assistance.

I find it unacceptable that disability can become the backdrop against which complaints, preferences and requests for help are repeatedly questioned rather than properly examined.

I find it morally indefensible for any professional or institution to treat a vulnerable person's dependence as an opportunity to exercise unnecessary control.

I find it particularly disturbing when reports of death threats are allegedly not escalated appropriately.

And I find the possibility that legitimate criminal complaints could be diverted into psychiatric processes without proper examination profoundly concerning.

The relevant legal and ethical principles include:

DUTY OF CARE

Organisations providing disability and health services must exercise reasonable care in the circumstances.

NON-MALEFICENCE

Professionals should avoid causing preventable harm.

BENEFICENCE

Services should act to promote the welfare and interests of the people they serve.

RESPECT FOR AUTONOMY

A person must be treated as an individual with rights, preferences, views and decision-making abilities.

JUSTICE AND EQUALITY

People with disabilities must not be subjected to inferior treatment or discriminatory assumptions.

PROFESSIONAL INTEGRITY

Workers and managers must be honest, transparent, accountable and appropriately responsive to complaints.

SAFEGUARDING

Reports of neglect, threats, exploitation, abuse and unsafe living conditions must be appropriately assessed, documented, escalated and addressed.

CONTINUITY OF CARE

A vulnerable participant should not simply be left without essential assistance when a

provider cannot deliver an agreed service.

I am not asking to be labelled.

I am asking to be heard.

I am asking for police to investigate suspected criminal conduct.

I am asking for the conduct of Able Point management to be independently examined.

I am asking for my provider's handling of reported death threats to be investigated.

I am asking for financial decisions, disability support arrangements and safeguarding failures to be examined against the law.

I am asking for the evidence to be preserved.

I am asking for people to be held accountable where wrongdoing is established.

==========

11. MY FINAL STATEMENT TO AUSTRALIA

I am not asking for revenge.

I am asking for justice, protection, restoration and the opportunity to live.

My psychiatric history does not cancel my human rights.

My disability does not diminish my humanity.

My complaints do not remove my entitlement to protection.

My determination to preserve evidence does not make the underlying questions disappear.

I AM NOT SUICIDAL. I AM PROTESTING BECAUSE I WANT TO LIVE.

I want to live somewhere safe.

I want appropriate treatment.

I want my independence restored.

I want Crystal safe.

I want to rebuild my life.

I want to write, create and contribute something meaningful to the world.

I want the opportunity to live without having to fight every day for the basic conditions of human existence.

If the evidence establishes that people or institutions have breached their legal or professional obligations, those responsible must be held appropriately accountable.

If decisions were lawful, the authorities should be able to demonstrate their legal basis, explain their reasoning and identify the safeguards available to me.

What cannot be acceptable is an arrangement in which a vulnerable person is left without meaningful assistance while every institution points towards another institution.

That is not accountability.

That is not safeguarding.

That is not dignified disability support.

And that is not the standard of humanity Australia should expect of itself.

==========

12. PLEASE HELP ME REACH SAFETY

URGENT HUMANITARIAN APPEAL

DR RICHARD WILLIAM McLEAN DR BARRAN DODGER

I urgently need:

- **Food and essential supplies.**

- **Assistance for myself and Crystal.**
- **Safe and stable accommodation.**
- **Independent safeguarding and legal advocacy.**
- **Assistance obtaining appropriate disability support.**
- **An appropriate response to reported death threats.**
- **An independent criminal investigation of suspected wrongdoing.**
- **Financial and practical assistance to regain independence.**

DIRECT CONTACT

Phone: 0431 300 940

PayID: 0431 300 940

If you can provide practical assistance, please contact me directly.

If you cannot personally help, please share this appeal with somebody who might be able to.

==========

13. READ THE TESTIMONY. EXAMINE THE EVIDENCE.

THE WITNESS REMAINS — THE COSMIC RECKONING

https://barran-dodger-krynos-timing-of-god.grok.me/

THE BARRAN DODGER DOCUMENTARY ARCHIVE

https://github.com/wezzo72/Barrandodger

OFFICIAL GOVERNMENT DOCUMENTS REGISTER

https://wezzo72.github.io/Barrandodger/official-government-documents-register.html

==========

14. THE WITNESS REMAINS

I am not asking anyone to worship me, accept every interpretation or condemn anybody without evidence.

I am asking for the truth to be examined.

I am asking for the law to be applied.

I am asking for my safety to matter.

I am asking for humanity.

I am asking for the opportunity to live.

I AM NOT SICK. I AM NOT ASKING TO BE SILENCED. I AM ASKING FOR THE ALLEGED MISCONDUCT TO BE INVESTIGATED.

PRESERVATION FIRST. EXAMINATION SECOND. CONCLUSION LAST.

TIME IS THE WITNESS. TRUTH IS THE JUDGE.

Dr Richard William McLean Dr Barran Dodger

1 NOVEMBER 2026

==========

PUBLICATION AND EVIDENTIARY NOTE

The allegations concerning Able Point and its CEO are allegations requiring independent investigation, not findings of guilt.

The death threats and provider's response should be supported by original messages, correspondence, dates, incident records and witness information wherever available.

A criminal investigation and a welfare assessment are different processes. Requesting a criminal investigation does not prevent an appropriate response to an actual immediate emergency.

The website overview is a thematic executive summary rather than a verified page-by-page audit of every published webpage.

The legal frameworks identified above are provided to guide independent assessment. Whether a particular provision has been breached depends on the evidence, the applicable statutory requirements and the findings of the relevant authority.

==========

END OF HUMANITARIAN APPEAL

I WANT TO LIVE. I WANT SAFETY. I WANT JUSTICE. I WANT MY HUMANITY RECOGNISED.

I would add the following as a substantial new section to your SOS report, immediately after Section 6, "Why This Is a Human Rights and Safeguarding Issue".

I have included the relevant Australian legislation, NSW legislation, international conventions ratified by Australia, professional and ethical standards, and direct links to the original legal instruments.

One important distinction strengthens your appeal: these are potential legal breaches and obligations requiring investigation, not findings that a particular person has already committed an offence. That distinction makes the document more credible and gives investigators specific legal questions to examine.

7. LEGAL ACCOUNTABILITY: POTENTIAL BREACHES OF AUSTRALIAN LAW, INTERNATIONAL HUMAN RIGHTS OBLIGATIONS AND PROFESSIONAL ETHICAL STANDARDS

A request for independent investigation into alleged unlawful conduct, disability discrimination, safeguarding failures, financial-management decisions, threats, institutional misconduct and breaches of human rights.

I am requesting an independent legal examination of the conduct described in this testimony.

My concerns are not confined to poor customer service or disagreements about disability support. They raise questions about statutory duties, individual rights, professional conduct, financial administration, safeguarding, personal safety and Australia's obligations under international human rights law.

I am asking the relevant authorities to determine whether any individuals, organisations or public authorities have breached applicable laws, regulations, professional standards or ethical obligations.

I do not claim that every law listed below has necessarily been broken. The precise provisions engaged will depend on the evidence, the legal status of each organisation,

the responsibilities of each individual and the circumstances of each incident.

Nevertheless, the following legislation and frameworks provide a substantial basis for independent examination.

7.1 COMMONWEALTH LEGISLATION — NATIONAL LEGAL OBLIGATIONS

A. NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (CTH)

Full legislation:

https://www.legislation.gov.au/C2013A00020/latest/text

Relevant provisions include:

- **Section 3 — Objects of the Act.**
- **Section 4 — General principles guiding actions under the Act.**
- **Section 5 — Principles guiding people acting on behalf of others.**
- **Sections 73W and 73X — Complaints management and resolution.**
- **Section 73Y — Incident-management systems for registered NDIS providers.**
- **Section 73Z — Reportable incidents.**

The Act recognises the rights of people with disability to participate in social and economic life, exercise choice and pursue their goals.

Section 73Y requires registered NDIS providers to implement and maintain an appropriate incident-management system.

Section 73Z establishes the legislative framework for the notification and management of reportable incidents.

The Act also provides a framework for the NDIS Commission to investigate complaints and take regulatory action.

Questions requiring investigation:

- **Were my complaints properly received, documented and investigated?**
- **Were my safeguarding concerns escalated appropriately?**
- **Did the provider maintain an effective incident-management system?**
- **Were relevant incidents recorded accurately?**
- **Were my rights, choices and individual support needs respected?**
- **Did any provider conduct breach conditions of registration?**
- **Did management take appropriate action when concerns were raised?**

The current Act includes express incident-management and complaints provisions. Federal Register of Legislation +1

B. NATIONAL DISABILITY INSURANCE SCHEME (CODE OF CONDUCT) RULES 2018

Full legislation:

https://www.legislation.gov.au/F2018L00629/latest/text

The NDIS Code of Conduct establishes standards applying to NDIS providers and workers.

The Code requires providers and workers to:

- **Act with respect for individual rights.**
- **Respect individual self-determination.**
- **Respect privacy.**
- **Provide supports and services safely and competently.**
- **Act with integrity, honesty and transparency.**
- **Promptly take steps to raise and act on concerns that may affect the quality and safety of supports and services.**
- **Prevent and respond to violence, exploitation, neglect and abuse.**

Questions requiring investigation:

Did any worker or manager disregard reported threats, fail to respond appropriately to safeguarding concerns, compromise my privacy, act dishonestly, or provide support in a manner inconsistent with the Code?

Did management respond appropriately to complaints about worker conduct?

Did the organisation take reasonable steps to protect me from foreseeable harm?

Did any individual use their position in a way inconsistent with the dignity, rights and autonomy of a participant?

These are matters for the NDIS Commission to assess against the Code. Federal Register of Legislation +1

C. NATIONAL DISABILITY INSURANCE SCHEME (INCIDENT MANAGEMENT AND REPORTABLE INCIDENTS) RULES 2018

Full legislation:

https://www.legislation.gov.au/F2018L00633/latest/text

This is particularly important to my complaint concerning reported death threats and the alleged failure to escalate safeguarding concerns.

Relevant provisions include:

- **Rule 8 — Incident-management system requirements.**
- **Rule 9 — Incidents that must be covered.**
- **Rule 10 — Incident-management procedures.**
- **Rule 11 — Procedural fairness.**
- **Rule 12 — Documentation, record keeping and statistics.**
- **Rule 13 — Roles, responsibilities, compliance and worker training.**
- **Rule 16 — What constitutes a reportable incident.**
- **Rule 17 — Alleged reportable incidents.**
- **Rule 18 — Duties of key personnel.**
- **Rule 19 — Duties of workers to notify the provider.**
- **Rules 20 and 21 — Notification timeframes.**
- **Rule 25 — Record keeping.**

I request an investigation into:

- **Whether my reports were recorded.**
- **Whether the provider assessed the risks.**
- **Whether workers notified management.**
- **Whether management fulfilled its responsibilities.**
- **Whether any incident fell within the statutory definition of a reportable incident.**
- **Whether the provider complied with the applicable notification timeframes.**
- **Whether records were maintained and made available to the appropriate authorities.**

An important legal qualification: a death threat is not automatically a reportable incident under the NDIS Rules simply because it was reported to a provider. The circumstances must be assessed against the prescribed categories and the connection with the provision of NDIS supports. However, other incidents and safety concerns may still need to be managed and documented through the provider's incident-management system.

I specifically request that the NDIS Commission examine the actual threats, the circumstances in which I reported them, the provider's response and the relevant

records. Federal Register of Legislation +1

D. DISABILITY DISCRIMINATION ACT 1992 (CTH)

Full legislation:

https://www.legislation.gov.au/C2004A04426/latest/text

This legislation prohibits disability discrimination in specified areas of public life, including the provision of goods, services and accommodation.

Relevant areas for examination include:

- **Direct disability discrimination.**
- **Indirect disability discrimination.**
- **Failure to provide reasonable adjustments where required.**
- **Discrimination in the provision of services.**
- **Discrimination in accommodation.**
- **Victimisation connected with making or pursuing a discrimination complaint.**

I request an independent assessment of whether my disability, psychiatric history or support needs resulted in discriminatory treatment, unreasonable barriers, denial of services or unfavourable treatment.

I also request examination of whether my complaints were treated differently because of assumptions about my disability or mental health.

A diagnosis or disability must not be used as a substitute for assessing a person's actual conduct, legal rights or credibility.

The Act's application will depend on the particular conduct, the relevant statutory definitions and any applicable exceptions. Federal Register of Legislation +1

E. PRIVACY ACT 1988 (CTH)

Full legislation:

https://www.legislation.gov.au/C2004A03712/latest/text

The Privacy Act regulates the handling of personal information by organisations and government agencies covered by the Act.

Relevant matters include:

- **Collection of personal information.**
- **Use and disclosure of personal information.**
- **Accuracy of records.**
- **Access to personal information.**
- **Correction of inaccurate information.**
- **Security and handling of sensitive information.**
- **Applicable Australian Privacy Principles.**

I request an examination of whether personal, medical, disability or financial information was handled lawfully and appropriately.

I also request that any disputed records be identified, that inaccurate information be considered for correction and that the handling of my complaints and personal information be independently reviewed.

The Privacy Act does not apply identically to every organisation or every record. Its application must be assessed against the relevant entity and information involved. Federal Register of Legislation +1

F. AUSTRALIAN HUMAN RIGHTS COMMISSION ACT 1986 (CTH)

Full legislation:

https://www.legislation.gov.au/C2004A03366/latest/text

This Act establishes the Australian Human Rights Commission and provides mechanisms for handling certain discrimination and human rights complaints.

I request that relevant matters be considered under the Commission's statutory functions, including disability discrimination and applicable human rights complaints.

Federal Register of Legislation +1

7.2 NEW SOUTH WALES LEGISLATION — STATE LEGAL OBLIGATIONS

A. NSW TRUSTEE AND GUARDIAN ACT 2009 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-2009-049

This legislation is especially relevant to my concerns about financial management, restricted access to money, personal autonomy and the administration of my financial affairs.

Section 39 establishes general principles applicable to the management of estates under Chapter 4.

Those principles include:

- **The welfare and interests of the person must be given paramount consideration.**
- **Freedom of decision and freedom of action should be restricted as little as possible.**
- **The person should be encouraged to live a normal life in the community.**
- **The person's views should be taken into consideration.**
- **The person should be encouraged to be self-reliant in personal, domestic and financial affairs.**
- **The person should be protected from neglect, abuse and exploitation.**

These are particularly important statutory principles in examining financial management arrangements.

I request an independent examination of:

- **Whether financial restrictions were lawfully authorised.**
- **Whether restrictions were necessary and proportionate.**
- **Whether my views and preferences were properly considered.**
- **Whether my essential living requirements were adequately considered.**
- **Whether the administration of my money supported or undermined my independence.**
- **Whether decisions were properly explained and documented.**
- **Whether the relevant statutory principles were followed.**

I specifically request examination of the decisions affecting my fortnightly allowance, rent, debts, essential expenditure and access to money.

I also request a review of whether the financial arrangements are consistent with the statutory objective of restricting freedom of decision and action as little as possible.

Section 39 is particularly important because it expressly identifies self-reliance, freedom of decision and protection from neglect, abuse and exploitation as relevant principles. NSW Legislation +1

B. GUARDIANSHIP ACT 1987 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-1987-257

This legislation is relevant where guardianship orders, financial-management orders or related decision-making arrangements apply.

I request examination of:

- **Whether relevant orders remain necessary.**
- **Whether the scope of any order is proportionate.**
- **Whether my current circumstances and decision-making abilities have been properly considered.**
- **Whether my views, preferences and wishes have been taken into account.**
- **Whether appropriate review mechanisms have been made available.**

I request that any restrictions be examined against the applicable statutory principles and the actual terms of the relevant orders.

C. MENTAL HEALTH ACT 2007 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-2007-008

This legislation is relevant to my concerns about psychiatric assessment, treatment, hospitalisation, personal autonomy and the use of mental health powers.

The Act establishes principles and safeguards concerning mental health care and treatment.

I request examination of whether any mental health intervention involving me was lawful, properly justified and consistent with the applicable statutory safeguards.

I also request that my history of psychiatric treatment not be used to dismiss unrelated complaints about criminal conduct, disability services, financial management or personal safety.

My psychiatric history does not remove my right to report crime, make complaints, preserve evidence or request an investigation.

D. CRIMES ACT 1900 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-1900-040

I request NSW Police to examine whether the conduct reported in my testimony may involve offences under NSW criminal law.

Depending on the evidence, the relevant investigation may need to consider:

- **Threats and conduct intended to cause fear.**
- **Assault or other unlawful interference with personal safety.**
- **Fraud or dishonesty, if supported by evidence.**
- **Conspiracy or agreement to commit an offence, where the legal elements are established.**
- **Attempts to conceal, destroy or interfere with evidence.**
- **Conduct intended to obstruct or pervert the administration of justice, if supported by evidence.**

I am not asserting that each of these offences has occurred.

I am asking police to determine whether the evidence supports any criminal charge and to identify the applicable statutory or common-law offence.

E. CRIMES (DOMESTIC AND PERSONAL VIOLENCE) ACT 2007 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-2007-080

This legislation may be relevant where the reported conduct meets the statutory definitions of intimidation, stalking or other relevant personal-violence conduct.

I request police to consider whether the reported threats and other conduct meet the relevant legal definitions and whether protective measures are available.

F. ANTI-DISCRIMINATION ACT 1977 (NSW)

Full legislation:

https://legislation.nsw.gov.au/view/html/inforce/current/act-1977-048

This Act provides protections against discrimination on specified grounds in specified areas of public life.

I request consideration of whether any treatment I experienced involved unlawful disability discrimination or victimisation within the meaning of the applicable legislation.

This should be assessed alongside the Commonwealth Disability Discrimination Act.

7.3 CRIMINAL INVESTIGATION — CONSPIRACY, THREATS AND POSSIBLE COORDINATED CONDUCT

I specifically request that NSW Police investigate whether the events described in my testimony involve isolated incidents, systemic failures, negligent conduct, deliberate misconduct or coordinated unlawful activity.

I want investigators to examine the possibility of an agreement between individuals to commit an offence, but I recognise that the legal elements of conspiracy must be established by evidence.

The investigation should examine:

- **Communications between relevant individuals.**
- **The chronology of decisions and incidents.**
- **Whether any person knowingly assisted or encouraged unlawful conduct.**
- **Whether threats were made, communicated or ignored.**
- **Whether records were altered, concealed or destroyed.**
- **Whether any person attempted to intimidate me or discourage legitimate complaints.**
- **Whether there was retaliation connected with my complaints.**
- **Whether management knew about the relevant circumstances.**
- **Whether any conduct amounts to a criminal offence under NSW or Commonwealth law.**

I request preservation of original emails, messages, case notes, incident reports, call records, financial records and relevant organisational communications.

I want investigators to establish the facts before reaching conclusions.

I am not demanding predetermined charges.

I am demanding an independent investigation.

7.4 NATIONAL PROFESSIONAL AND ETHICAL FRAMEWORKS

Legal compliance is only one part of the issue.

Disability, health and government services are also expected to operate according to professional standards, ethical principles and recognised safeguarding frameworks.

The following frameworks are relevant.

A. NDIS PRACTICE STANDARDS

Official NDIS Commission legislation, rules and policy page:

https://www.ndiscommission.gov.au/about-us/legislation-rules-and-policies

The NDIS Practice Standards address matters including:

- **Rights and responsibilities.**
- **Governance and operational management.**
- **Provision of supports.**
- **Support planning.**
- **Safe environments.**
- **Incident management.**
- **Complaints management.**
- **Risk management.**
- **Continuity and quality of supports.**

I request examination of whether the provider's actual practices complied with the applicable Practice Standards.

B. NATIONAL STANDARDS FOR DISABILITY SERVICES

Australian Government resource:

https://www.health.gov.au/resources/publications/national-standards-for-disability-services

The six standards are:

- **RIGHTS — Respect for individual rights, freedom of expression, self-determination and decision-making.**
- **PARTICIPATION AND INCLUSION — Meaningful participation in the community.**
- **INDIVIDUAL OUTCOMES — Supports designed around the individual's strengths and goals.**
- **FEEDBACK AND COMPLAINTS — Accessible complaint processes and meaningful responses.**
- **SERVICE ACCESS — Fair, transparent and responsive access to services.**
- **SERVICE MANAGEMENT — Effective and accountable organisational leadership.**

I request examination of whether the service arrangements I experienced met these standards.

C. AUSTRALIAN CHARTER OF HEALTHCARE RIGHTS — SECOND EDITION

Official resource:

https://www.safetyandquality.gov.au/our-work/partnering-consumers/australian-charter-healthcare-rights

Full accessible Charter:

https://www.safetyandquality.gov.au/resources/australian-charter-healthcare-rights-second-edition-a4-accessible

The Charter identifies seven healthcare rights:

- **Access.**
- **Safety.**
- **Respect.**
- **Partnership.**
- **Information.**
- **Privacy.**
- **Giving feedback.**

I request that relevant health-service interactions be examined against these principles.

The Charter is a national rights framework for healthcare consumers. It is not, by itself, a criminal statute.

D. PROFESSIONAL ETHICAL OBLIGATIONS

The following ethical principles should inform an independent examination of the conduct of relevant workers, managers and professionals:

DIGNITY AND RESPECT

Every person must be treated as a human being with inherent dignity, regardless of disability, diagnosis, financial circumstances or dependence on support.

AUTONOMY

People should be supported to exercise choice, make decisions and participate in decisions affecting their lives.

BENEFICENCE

Professionals should act to promote the welfare and interests of the people they serve.

NON-MALEFICENCE

Professionals should avoid causing preventable harm and take reasonable steps to address foreseeable risks.

JUSTICE

People should receive fair treatment without discrimination or arbitrary disadvantage.

CONFIDENTIALITY

Personal, medical and disability information must be handled appropriately and in accordance with applicable legal and professional requirements.

PROFESSIONAL INTEGRITY

Workers and managers should act honestly, transparently and responsibly.

DUTY TO RAISE CONCERNS

Professionals should appropriately report and escalate concerns about abuse, neglect, exploitation, threats, unsafe practices and other serious risks.

ACCOUNTABILITY

Organisations should investigate complaints, preserve records, explain decisions and take corrective action when failures are established.

CONTINUITY OF SUPPORT

People who depend on disability services should not be left without essential assistance through avoidable failures in service coordination or delivery.

I request that these obligations be considered when examining the conduct of relevant individuals and organisations.

8. INTERNATIONAL HUMAN RIGHTS LAW — TREATIES RATIFIED BY AUSTRALIA

Australia has ratified the principal international human rights treaties.

The Australian Attorney-General's Department explains that ratification creates obligations under international law.

Official Australian Government explanation:

https://www.ag.gov.au/rights-and-protections/human-rights-and-anti-discrimination/international-human-rights-system

United Nations treaty database — Australia:

https://tbinternet.ohchr.org/_layouts/15/TreatyBodyExternal/Countries.aspx?CountryCode=AUS&Lang=EN

I request that the circumstances described in my testimony be examined against the following international instruments.

8.1 CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES (CRPD)

Australia ratified this Convention on 17 July 2008.

United Nations treaty record:

https://treaties.un.org/Pages/ViewDetails.aspx?chapter=4&clang=_en&mtdsg_no=IV-15&src=TREATY

Full Convention:

https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rights-persons-disabilities

This is the most directly relevant international human rights treaty to my disability-related complaints.

Relevant articles include:

ARTICLE 3 — GENERAL PRINCIPLES

Dignity, autonomy, independence, non-discrimination, participation and accessibility.

ARTICLE 5 — EQUALITY AND NON-DISCRIMINATION

People with disabilities are entitled to equality and protection against discrimination.

ARTICLE 12 — EQUAL RECOGNITION BEFORE THE LAW

People with disabilities have the right to recognition as persons before the law and to equal legal capacity.

ARTICLE 14 — LIBERTY AND SECURITY OF PERSON

People with disabilities are entitled to liberty and security on an equal basis with others.

ARTICLE 15 — FREEDOM FROM TORTURE OR CRUEL, INHUMAN OR DEGRADING TREATMENT OR PUNISHMENT

ARTICLE 16 — FREEDOM FROM EXPLOITATION, VIOLENCE AND ABUSE

States must take appropriate measures to protect people with disabilities from exploitation, violence and abuse.

ARTICLE 17 — PROTECTING THE INTEGRITY OF THE PERSON

ARTICLE 19 — LIVING INDEPENDENTLY AND BEING INCLUDED IN THE COMMUNITY

ARTICLE 22 — RESPECT FOR PRIVACY

ARTICLE 25 — HEALTH

ARTICLE 28 — ADEQUATE STANDARD OF LIVING AND SOCIAL PROTECTION

I request examination of whether my experiences involving financial restrictions, disability support, accommodation, safety, independence and treatment raise concerns under these provisions.

The Convention is particularly relevant to my position that disability support should promote independence rather than create unnecessary dependency or restrict a person's freedom without lawful justification.

8.2 INTERNATIONAL COVENANT ON CIVIL AND POLITICAL RIGHTS (ICCPR)

Australia ratified the ICCPR on 13 August 1980.

United Nations treaty record:

https://treaties.un.org/Pages/showActionDetails.aspx?clang=_en&objid=0800000280006116

Full Covenant:

https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights

Relevant articles include:

ARTICLE 2 — OBLIGATION TO RESPECT AND ENSURE RIGHTS

ARTICLE 7 — FREEDOM FROM TORTURE AND CRUEL, INHUMAN OR DEGRADING TREATMENT

ARTICLE 9 — LIBERTY AND SECURITY OF PERSON

ARTICLE 10 — HUMANE TREATMENT OF PERSONS DEPRIVED OF LIBERTY

ARTICLE 16 — RECOGNITION AS A PERSON BEFORE THE LAW

ARTICLE 17 — PRIVACY, FAMILY AND HOME

ARTICLE 19 — FREEDOM OF EXPRESSION

ARTICLE 26 — EQUALITY BEFORE THE LAW AND EQUAL PROTECTION

I request examination of whether the circumstances I describe raise concerns about personal security, dignity, privacy, equality and the treatment of a person exercising their right to complain and express concerns.

8.3 INTERNATIONAL COVENANT ON ECONOMIC, SOCIAL AND CULTURAL RIGHTS (ICESCR)

Australia ratified this Covenant on 10 December 1975.

Full Covenant:

https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-economic-social-and-cultural-rights

Relevant articles include:

ARTICLE 2 — NON-DISCRIMINATION AND IMPLEMENTATION OF RIGHTS

ARTICLE 6 — RIGHT TO WORK

ARTICLE 11 — RIGHT TO AN ADEQUATE STANDARD OF LIVING

This includes adequate food, clothing and housing.

ARTICLE 12 — RIGHT TO THE HIGHEST ATTAINABLE STANDARD OF PHYSICAL AND MENTAL HEALTH

ARTICLE 15 — RIGHT TO PARTICIPATE IN CULTURAL LIFE

These provisions are relevant to my reports of difficulty obtaining food, stable accommodation, appropriate healthcare, disability support and meaningful participation in the community.

I request that the relevant authorities consider whether the circumstances described raise concerns about Australia's obligations to respect, protect and progressively realise these rights.

8.4 CONVENTION AGAINST TORTURE AND OTHER CRUEL, INHUMAN OR DEGRADING TREATMENT OR PUNISHMENT (CAT)

Australia ratified the Convention on 8 August 1989.

Full Convention:

https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-against-torture-and-other-cruel-inhuman-or-degrading-treatment-or-punishment

Relevant provisions include:

ARTICLE 2 — OBLIGATION TO TAKE EFFECTIVE MEASURES TO PREVENT TORTURE.

ARTICLE 10 — EDUCATION AND INFORMATION ABOUT THE PROHIBITION OF TORTURE.

ARTICLE 12 — PROMPT AND IMPARTIAL INVESTIGATION WHERE THERE ARE REASONABLE GROUNDS TO BELIEVE TORTURE HAS OCCURRED.

ARTICLE 13 — RIGHT TO COMPLAIN AND HAVE THE COMPLAINT EXAMINED PROMPTLY AND IMPARTIALLY.

ARTICLE 16 — PREVENTION OF OTHER ACTS OF CRUEL, INHUMAN OR DEGRADING TREATMENT OR PUNISHMENT.

I do not assert that the legal definition of torture has been established in my circumstances.

I request that the treatment I describe be assessed against the applicable protections and that no conclusion be reached without examining the facts and legal thresholds.

8.5 OTHER CORE INTERNATIONAL HUMAN RIGHTS TREATIES RATIFIED BY AUSTRALIA

Australia is also a party to the following core human rights conventions.

A. INTERNATIONAL CONVENTION ON THE ELIMINATION OF ALL FORMS OF RACIAL DISCRIMINATION (CERD)

Full Convention:

https://www.ohchr.org/en/instruments-mechanisms/instruments/international-

convention-elimination-all-forms-racial

This treaty is relevant where racial discrimination is alleged. I do not claim it has been breached in my circumstances without evidence of a relevant racial-discrimination issue.

B. CONVENTION ON THE ELIMINATION OF ALL FORMS OF DISCRIMINATION AGAINST WOMEN (CEDAW)

Full Convention:

https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-elimination-all-forms-discrimination-against-women

This treaty addresses discrimination against women. It is not a direct basis for my personal disability complaint, but it forms part of Australia's core treaty commitments.

C. CONVENTION ON THE RIGHTS OF THE CHILD (CRC)

Full Convention:

https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rights-child

This Convention protects children. It is not directly applicable to my personal circumstances as an adult, but it is part of Australia's core treaty obligations.

The Australian Government identifies these instruments, together with the ICCPR, ICESCR, CAT and CRPD, as Australia's seven core international human rights treaties. Attorney-General's Department +2

8.6 OPTIONAL PROTOCOL TO THE CONVENTION ON THE RIGHTS OF PERSONS WITH DISABILITIES

Australia has also ratified the Optional Protocol to the CRPD.

United Nations treaty information:

https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-15-a&chapter=4

The Optional Protocol establishes an individual communications procedure under which eligible complaints may be submitted to the UN Committee on the Rights of Persons with Disabilities, subject to its admissibility requirements.

These include the requirement to generally exhaust available domestic remedies, subject to recognised exceptions.

I request that my circumstances be examined to determine whether any domestic remedies remain available and whether the international complaints procedure may become relevant.

9. THE INTERNATIONAL DECLARATION OF HUMAN RIGHTS AND OTHER AUTHORITATIVE PRINCIPLES

In addition to binding treaties, several important international declarations and principles provide guidance.

These are not all treaties and should not be described as though Australia has ratified them.

A. UNIVERSAL DECLARATION OF HUMAN RIGHTS (UDHR)

Full text:

https://www.un.org/en/about-us/universal-declaration-of-human-rights

Relevant articles include:

- **Article 1 — Equality in dignity and rights.**
- **Article 2 — Non-discrimination.**
- **Article 3 — Life, liberty and security of person.**
- **Article 5 — Freedom from cruel, inhuman or degrading treatment.**
- **Article 7 — Equality before the law.**
- **Article 8 — Effective remedy.**
- **Article 12 — Privacy.**
- **Article 19 — Freedom of opinion and expression.**
- **Article 22 — Social security.**
- **Article 25 — Adequate standard of living, including food, housing and medical care.**

The UDHR is a declaration rather than a treaty requiring ratification. It is nevertheless a foundational international human rights instrument.

B. UN PRINCIPLES FOR THE PROTECTION OF PERSONS WITH MENTAL ILLNESS AND THE IMPROVEMENT OF MENTAL HEALTH CARE

Full text:

https://www.ohchr.org/en/instruments-mechanisms/instruments/principles-protection-persons-mental-illness-and-improvement

These principles provide historical international guidance concerning dignity, rights, mental health care and safeguards.

They should be considered as guidance rather than treated as a binding treaty.

C. UNITED NATIONS GUIDING PRINCIPLES ON BUSINESS AND HUMAN RIGHTS

Full text:

https://www.ohchr.org/sites/default/files/documents/publications/guidingprinciplesbusinesshr_en.pdf

These principles address the responsibility of businesses to respect human rights, avoid causing or contributing to adverse human rights impacts and address harms with which they are involved.

I request that the conduct of relevant corporate disability-service providers be considered in light of these principles.

10. THE ETHICAL OBLIGATIONS I BELIEVE REQUIRE INDEPENDENT EXAMINATION

The legal questions above are accompanied by serious ethical questions.

I request an independent assessment of whether the following obligations were observed.

1. THE DUTY TO RESPECT HUMAN DIGNITY

Was I treated with respect, regardless of disability, psychiatric history or financial dependence?

2. THE DUTY TO RESPECT AUTONOMY

Were my decisions, preferences and wishes properly considered?

3. THE DUTY TO PROTECT FROM HARM

Were foreseeable risks, threats and safeguarding concerns taken seriously?

4. THE DUTY TO ACT WITH INTEGRITY

Were communications, reports, case notes and decisions accurate and honest?

5. THE DUTY TO RESPOND TO COMPLAINTS

Were complaints acknowledged, investigated and answered appropriately?

6. THE DUTY TO MAINTAIN ACCURATE RECORDS

Were incident reports, communications, support notes and financial records properly maintained?

7. THE DUTY TO PROTECT CONFIDENTIALITY

Was my personal and sensitive information handled lawfully?

8. THE DUTY TO SUPPORT INDEPENDENCE

Did the services provided promote participation, self-determination and independence?

9. THE DUTY TO PREVENT ABUSE AND NEGLECT

Were appropriate safeguarding measures taken?

10. THE DUTY TO PROVIDE SAFE AND COMPETENT SUPPORT

Were services delivered to an appropriate professional standard?

11. THE DUTY TO BE ACCOUNTABLE

Were mistakes acknowledged, complaints properly escalated and corrective actions taken where necessary?

12. THE DUTY TO AVOID RETALIATION

Was I treated fairly after making complaints or raising concerns?

13. THE DUTY TO PRESERVE EVIDENCE

Were relevant records and communications preserved when complaints and investigations were raised?

14. THE DUTY TO ENSURE PROCEDURAL FAIRNESS

Were decisions explained, relevant information considered and appropriate review mechanisms made available?

These are not merely abstract ethical ideals. Several are reflected in legislation, regulatory rules, practice standards and professional frameworks.

I request that the relevant organisations identify the specific policies and codes of conduct applying to each individual involved and explain whether those obligations were met.

11. FORMAL REQUEST FOR LEGAL AND REGULATORY FINDINGS

I request that the authorities receiving this appeal undertake the following actions.

NSW POLICE

- **Record and assess my reports of threats and suspected criminal conduct.**
- **Investigate whether any relevant criminal offences have occurred.**
- **Examine the possibility of coordinated unlawful conduct where supported by evidence.**
- **Preserve relevant communications and original records.**
- **Examine whether any evidence has been improperly concealed, altered or destroyed.**
- **Provide an appropriate investigation reference and explain the next steps.**

NDIS QUALITY AND SAFEGUARDS COMMISSION

- **Investigate the provider's response to my safeguarding concerns.**
- **Examine the handling of reported threats.**
- **Review incident-management records.**
- **Examine compliance with the NDIS Code of Conduct.**
- **Examine compliance with applicable Practice Standards.**

- **Determine whether the provider complied with its statutory obligations.**
- **Consider appropriate regulatory action if breaches are established.**

NSW TRUSTEE AND GUARDIAN

- **Review the legal basis of financial restrictions.**
- **Examine the application of section 39 principles.**
- **Review the effect of financial decisions on my independence and essential living needs.**
- **Explain decisions affecting my allowance and financial arrangements.**
- **Identify available review and appeal mechanisms.**

NSW OMBUDSMAN

Examine relevant administrative conduct and complaint-handling concerns within its jurisdiction.

AUSTRALIAN HUMAN RIGHTS COMMISSION

Consider any eligible disability discrimination or human rights complaint.

OFFICE OF THE AUSTRALIAN INFORMATION COMMISSIONER

Examine any eligible privacy complaint concerning the handling of personal information.

INDEPENDENT LEGAL ADVOCACY

Assist me to identify the legal provisions that apply, obtain relevant records and pursue appropriate review or complaint processes.

12. FINAL LEGAL POSITION

I am not asking authorities to accept allegations as proven.

I am asking them to investigate whether the conduct described in my testimony amounts to breaches of Australian legislation, statutory duties, professional standards or Australia's international human rights obligations.

I am asking that the investigation consider the cumulative effect of the circumstances, not simply isolate each incident from the broader history.

I want the relevant organisations to identify:

- **What happened.**
- **Who was responsible.**
- **What they knew.**
- **When they knew it.**
- **What action they took.**
- **What legal authority they relied upon.**
- **What records they created.**
- **Whether their decisions were lawful.**
- **Whether their conduct complied with professional standards.**
- **Whether my rights were respected.**
- **Whether any person or organisation should be held accountable.**

I also request that all relevant evidence be preserved.

My fundamental position is straightforward:

A person's disability does not remove their rights.

A person's psychiatric history does not invalidate their complaints.

A person's dependence on support does not justify unnecessary control.

A person's financial vulnerability does not diminish their entitlement to dignity.

A person's report of threats deserves proper assessment.

A person's request for a criminal investigation deserves to be assessed as a criminal complaint, not automatically redirected into a psychiatric process.

I am asking for the law to be applied equally, the evidence to be examined independently and the human rights commitments Australia has made to be taken seriously.

I AM NOT ASKING FOR SPECIAL TREATMENT.

I AM ASKING FOR THE SAME DIGNITY, SAFETY, AUTONOMY, EQUALITY AND PROTECTION THAT THE LAW PROMISES TO EVERYONE.

PRESERVATION FIRST. EXAMINATION SECOND. CONCLUSION LAST.

TIME IS THE WITNESS. TRUTH IS THE JUDGE.

Important legal qualification for publication

The legislation and treaties above identify potential legal issues and relevant standards. They do not, by themselves, establish that a particular individual or organisation has committed an offence or breached a provision.

International treaties create obligations for Australia under international law, but treaty provisions do not automatically become directly enforceable domestic causes of action merely because Australia has ratified them. Domestic enforceability depends on Australian legislation and the legal context.

The NDIS reportable-incident rules also have defined categories. A reported threat must be assessed against those categories rather than automatically described as a reportable incident.

A finding of criminal conspiracy, discrimination, neglect, unlawful financial management, evidence interference or other wrongdoing requires evidence and application of the relevant legal elements.

The purpose of this legal schedule is to identify the laws and standards that independent investigators should examine, not to substitute allegations for findings.

This addition gives your SOS a much stronger legal structure: it identifies the actual legislation, identifies the obligations that may be relevant, explains the questions investigators should answer, and provides direct links to the original instruments. The NDIS Act, incident rules, disability discrimination legislation, NSW financial-management principles and CRPD are particularly important starting points. Federal Register of Legislation +4